

# Data Retention and Records Management Policy

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## 1. Purpose and Scope

This policy establishes retention periods and disposal requirements for contracts, invoices, compliance records, and related documentation generated or received in connection with the Company’s procurement and contract compliance activities. It applies to all business units, and to any third party acting as a records custodian on the Company’s behalf.

## 2. Retention Schedule

| Record Type                        | Minimum Retention   | Trigger                                 |
|------------------------------------|---------------------|-----------------------------------------|
| Executed contracts (all values)    | 7 years             | From contract expiration or termination |
| Contract amendments                | 7 years             | Same as parent contract                 |
| Invoices and payment records       | 7 years             | From date of payment                    |
| Legal review documentation         | 7 years             | From contract execution date            |
| Vendor risk assessments (Tier 1/2) | 5 years             | From assessment date                    |
| Vendor risk assessments (Tier 3/4) | 3 years             | From assessment date                    |
| ServiceNow compliance incidents    | 5 years             | From incident closure                   |
| Data privacy impact assessments    | 7 years             | From assessment date                    |
| Insurance certificates             | 3 years past expiry | From certificate expiration             |
| Contract compliance audit reports  | 10 years            | From audit completion                   |

Retention periods represent minimums. Records subject to active litigation, regulatory inquiry, or audit hold must be retained until the hold is formally lifted by Legal, regardless of the schedule above.

## 3. Records Format and Accessibility

Records may be retained in their original format (paper or electronic) or converted to a durable electronic format, provided the conversion preserves legibility and the record’s evidentiary integrity. Records ingested into the Contract Compliance Assistant’s knowledge base must retain their original source document alongside any derived embeddings or extracted text, so that a human reviewer can always trace a finding back to the original file.

## 4. Legal Hold Process

When Legal issues a litigation hold notice, all custodians of potentially relevant records must suspend any scheduled disposal for those records immediately. The Contract Compliance Assistant's automated retention enforcement (see Section 6) must support a hold flag that overrides standard disposal scheduling on a per-document basis.

## 5. Disposal Requirements

Upon expiration of the applicable retention period, and absent an active legal hold, records must be disposed of securely: - Electronic records: permanent deletion including backups and archived copies, following the secure deletion standard referenced in the Information Security Policy (POL-SEC-002) - Physical records: cross-cut shredding or certified secure destruction service

Disposal of Tier 1 or Tier 2 vendor-related records (per POL-VRM-005) requires a documented disposal log entry, including record type, date range covered, and the name of the individual authorizing disposal.

## 6. System Requirements

Any system storing contract, invoice, or compliance records — including this application's vector database and document store — must: 1. Tag each ingested document with its record type and retention trigger date at ingestion time 2. Support flagging individual documents or record sets as under legal hold, which suspends any automated disposal for that record 3. Generate a disposal-eligibility report on a quarterly basis for Legal and Records Management review before any bulk deletion occurs 4. Log all disposal actions with timestamp, record identifier, and authorizing user

Automated bulk deletion without human review is not permitted under any circumstance, even for records that have clearly exceeded their retention period.

## 7. Roles and Responsibilities

- **Records Management:** maintains the retention schedule, coordinates quarterly disposal review cycles
- **Legal:** issues and lifts litigation holds, approves disposal of legally sensitive record categories
- **IT/Engineering:** implements and maintains system-level retention tagging, hold flags, and disposal logging described in Section 6
- **Business Owners:** identify records that may be subject to hold due to known disputes or investigations, even before Legal formally issues a hold notice

## 8. Exceptions

Deviations from the standard retention schedule (either shorter or longer retention) require written approval from both Legal and Records Management, documented with a business or regulatory justification, and reviewed annually.

## 9. Related Documents

- Procurement Policy (POL-PROC-001)
- Information Security Policy (POL-SEC-002)
- Vendor Risk Management Policy (POL-VRM-005)
- SOP: Contract Renewal (SOP-CR-012)